

HSU v DEL MUNDO

24CV47462

DEFENDANTS' DEMURRER

Plaintiff Mike Sheng Con Hsu ("Plaintiff") filed his Complaint arising out of a real property dispute with Defendants Leonardo Del Mundo and Angela Del Mundo ("Defendants"). Now before the Court is Defendants' demurrer.

The demurrer does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.

Based on the foregoing, the motion is **DENIED**, without prejudice to refile, if otherwise allowed by statute.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal Order is required.

PG&E v TAN PROPERTY INVESTMENTS, LLC

24CV47680

PLAINTIFF'S MOTION FOR PRE-JUDGMENT POSSESSION OF PROPERTY

Pacific Gas & Electric ("PG&E") seeks to acquire by eminent domain the modification of a permanent easement utility as part of the Stanislaus-Manteca Reconductoring Project ("Project"). The location for the property is commonly known as 550 Skunk Ranch Road, Murphys, California ("Property"). Specifically, "PG&E proposes to remove and replace existing electrical transmission towers on the Property with new structures and conductor wires within two existing PG&E easements on the Property from 1907 and 1910 (Easement 1 and Easement 2, respectively), that require updating and replacement." (Complaint ¶ 6.)

PG&E now moves for an order for prejudgment possession of certain real property interests that are contained within the Property. Defendant Tan Property Investments, LLC ("Tan") opposes the motion.

I. Evidentiary Objections

The Court rules on Tan's evidentiary objections to the Declaration of Sanjeev S. Bhatawadekar and overrules all objections.

II. Legal Standard

Pursuant to Code Civil Procedure section 1255.410, subd.(a):

"At the time of filing the complaint or at any time after filing the complaint and prior to entry of judgment, the plaintiff may move the court for an order for possession under this article, demonstrating that the plaintiff is entitled to take the property by eminent domain and has deposited pursuant to Article 1 (commencing with Section 1255.010) an amount that satisfies the requirements of that article."